

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

DATE: July 16, 2026

TIME: 10:00 A.M.

TO CONTEST THE RULING: YOU MUST DO THE FOLLOWING OR NO OBJECTIONS WILL BE HEARD – see California Rule of Court 3.1308(a)(1) and Civil Local Rule 8.D:

(1) Call the Court at (408) 808-6856 before 4:00 P.M.

(2) Notify the other side by phone or email before 4:00 P.M. that you plan to appear and contest the ruling

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.)

TO APPEAR AT THE HEARING: The Court strongly prefers in person appearances. If you must appear virtually, click on the below link or copy and paste into your internet browser and scroll down to Department 2.

https://www.sccscourt.org/general_info/ra_teams/video_hearings_teams.shtml

COURT REPORTERS: The court does not provide official court reporters for civil/probate law and motion hearings. See court website for policy and forms for court reporters at hearing

State and local Court Rules prohibit recording of court proceedings without a Court order.

TROUBLESHOOTING TENTATIVE RULINGS

If do not see this week's tentative rulings, they have either not yet been posted or your web browser cache (temporary internet files) is accessing a prior week's rulings. "REFRESH" or "QUIT" your browser and reopen it, or adjust your internet settings to *see only the current version of the web page. Your browser will otherwise access old information from old cookies even after the current week's rulings have been posted.*

LINE #	CASE #	CASE TITLE	RULING
LINE 1	25PR201041	THE ESTATE OF MANUEL ANAYA-DUFRESNE	Click or scroll to line 1 for tentative ruling. Court will issue the final order.
LINE 2			
LINE 3			
LINE 4			

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Case Name: THE ESTATE OF MANUEL ANAYA-DUFRESNE

Case No.: 25PR201041

INTRODUCTION

On August 15, 2025, Manuel Anaya-Dufresne (“Decedent”) died intestate. His daughter, Emily Anaya (“Anaya”) filed a petition for letters of administration in docket 25PR201041. The court issued letters of administration on December 8, 2025.

On December 22, 2025, in docket 25PR201596, Anaya filed her Petitioner to Determine Title to Property and for Order Compelling Transfer (“Anaya’s Petition”). In that petition, Anaya asserts that petitioner’s former wife Deborah Kolter (“Kolter”) is holding certain property that belonged to Decedent at the time of his death, including art, watches, and coins. Anaya’s petition also seeks a determination that certain accounts and half of the contents of a safety deposit box belong to the estate. The accounts are mostly joint accounts, including Vanguard brokerage accounts ending in 3747 and 0058 (“the Vanguard Accounts”), which Anaya contends were awarded to Decedent when Decedent and Kolter divorce.

On March 19, 2026, in docket 25PR201041, Kolter filed her Petition to Determine Petitioner is Rightful Owner of Accounts (“Kolter’s Petition”). Kolter asserts that the Vanguard Accounts belong to her as the surviving joint tenant because Decedent never updated the accounts to remove her as a joint tenant.

On March 5, 2026, dockets 25PR201041 and 25PR201596 were consolidated with docket 25PR201041 designated as the lead case.

Both petitions were opposed. Anaya filed her objection to Kolter’s Petition on April 8, 2026. Kolter filed an objection to Anaya’s Petition on May 7, 2026. Anaya filed a reply on May 13, 2026.

On May 28, 2026, the court set the petitions on the law and motion calendar and set a briefing schedule. On June 12, 2026, Kolter filed her initial brief.¹ On June 24, 2025, Anaya filed her opposition and on July 9, 2026, Kolter filed her reply.

¹ Anaya contends that Kolter’s brief filed June 12, 2026 was untimely as the court ordered on May 28, 2026 that Kolter file her initial brief by June 11, 2026. Anaya also argues that Kolter’s objection to her petition was untimely filed on May 7, 2026 because the court ordered on March 5, 2026 that Kolter’s objection had to be filed by April 17, 2026. Anaya urges the court to decline to consider both briefs. Although Anaya is correct on both counts, the court will consider Kolter’s oppositions. (Cal. Rules Ct., rule 3.1300(d) [court has discretion to consider untimely papers]; *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765 [same].) The court notes that counsel for Kolter has repeatedly filed late pleadings in numerous cases. The court is unlikely to excuse counsel’s failure to timely file in the future.

DISCUSSION

I. Anaya's Request for Judicial Notice

With her opposition filed June 24, 2026, Anaya requests judicial notice of (1) the exhibits attached to her petition, specifically the divorce decree and (2) the exhibits attached to her reply, specifically Exhibit 1, Anaya's declaration; Exhibit 2, the declaration of Enrique Ibarra; and Exhibit 3, the declaration of Jennifer Camille. Kolter objects to all these requests.

The request for judicial notice of the divorce decree is GRANTED. (Evid. Code, § 452, subd. (d).) The requests for judicial notice of the exhibits attached to the reply is DENIED as the content of the declarations is not the proper subject of judicial notice. (See *Intengan v. BAC Home Loans Servicing LP* (2013) 214 Cal.App.4th 1047, 1057 [court may take judicial notice of existence of declaration but not of facts asserted in it].)

II. Merits of the Petitions

Decedent's and Kolter's marriage was dissolved on November 14, 2024, pursuant to a stipulated divorce decree. The divorce decree provides as follows, "Husband shall be and hereby is awarded all right, title and interest, free and clear of any claim by Wife, to the assets and the balances therein, specifically as follows: . . . Remainder of Joint Vanguard Brokerage account #0058 after transfer to Wife described in Paragraph R above. . . . The Joint Vanguard Brokerage account #3747."² (Kolter's Petition, Ex. C ("Divorce Decree"), p. 15.) It goes on to state, "The parties will cooperate to remove the other's name from any joint accounts within 30 days of entry of the Judgment and Decree and provide verification of same to the other. In the event a party's name cannot be removed from a joint account awarded to the other party, that account will be closed."

The parties agree that, at the time of Decedent's death, the Vanguard Accounts both bore the designation "JT TEN WROS," which they agree identifies them as joint accounts.

Kolter asserts that, when one joint account holder dies, the contents of the account belong to the surviving account holder. She relies primarily on Probate Code section 5302, which provides, in pertinent part, "Subject to Section 5040: . . . Sums remaining on deposit at the death of a party to a joint account belong to the surviving party or parties as against the estate of the decedent unless there is clear and convincing evidence of a different intent." (Prob. Code, § 5302, subd. (a).)³ Kolter also points to section 5303, which provides, "The provisions of Section 5302 as to rights of survivorship are determined by the form of the account at the death of a party" and states the various ways an individual may change the terms of a multi-party account. (§ 5303, subds. (a)&(b).)

² The parties do not make any argument regarding the transfer to Kolter described in paragraph R of the decree.

³ All further undesignated statutory references are to the Probate Code.

Thus, Kolter asserts that the form of the account controls and that, as the surviving party to the account, she is entitled to the contents of the account. She further contends that the divorce decree did not itself retitle the accounts and that Decedent failed to update the accounts before he died, meaning they are still joint accounts. In her petition, she states, on information and belief, that Decedent intended the funds in the joint accounts to go to her.

Anaya, on the other hand, asserts that Decedent's and Kolter's divorce severed the joint status of the joint accounts. She points to section 5040, which provides, "Except as provided in subdivision (b), a nonprobate transfer to the transferor's former spouse, in an instrument executed by the transferor before or during the marriage or registered domestic partnership, fails if, at the time of the transferor's death, the former spouse is not the transferor's surviving spouse as defined in Section 78, as a result of the dissolution or annulment of the marriage or termination of registered domestic partnership. . . ." (§ 5040, subd. (a).) Subdivision (b) of section 5040 provides, as relevant here, "Subdivision (a) does not cause a nonprobate transfer to fail in any of the following cases: . . . There is clear and convincing evidence that the transferor intended to preserve the nonprobate transfer to the former spouse." (§ 5040, subd. (b)(2).)

Anaya also relies on section 5042, which provides in relevant part, "Except as provided in subdivision (b), a joint tenancy between the decedent and the decedent's former spouse, created before or during the marriage or registered domestic partnership, is severed as to the decedent's interest if, at the time of the decedent's death, the former spouse is not the decedent's surviving spouse as defined in Section 78, as a result of the dissolution or annulment of the marriage or registered domestic partnership. . . ." (§ 5042, subd. (a).) Subdivision (b) of section 5042 provides, in pertinent part, "Subdivision (a) does not sever a joint tenancy in . . . the following cases: . . . [t]here is clear and convincing evidence that the decedent intended to preserve the joint tenancy in favor of the former spouse." (Prob. Code, § 5042, subd. (b)(2).)⁴

Anaya asserts that Kolter cannot establish by clear and convincing evidence that Decedent intended to preserve the joint character of the account by merely failing to update the terms of the account and that Kolter has provided no other evidence of Decedent's intent.

A. Probate Code sections 5040 and 5042 Control

Sections 5040 and especially 5042 are the more specific statutes governing joint accounts of a decedent who completed divorce proceedings prior to death. (See *Bull Field, LLC v. Merced Irrigation Dist.* (2022) 85 Cal.App.5th 442, 459, fn. 8 [a more specific statute controls over a more general statute].) This conclusion is bolstered by the fact that section 5302 provides that it applies "[s]ubject to Section 5040[.]"

Moreover, Assembly Bill 873 (2001 Reg. Sess.), which added former section 5601 (now section 5042) to the Probate Code also added to the Family Code section 2024, which requires petitions and judgements for dissolution of marriage to advise that, among other things, " 'Dissolution or annulment of your marriage may *automatically* cancel your spouse's rights under your will, trust, retirement benefit plan, power of attorney, pay on death bank account, transfer on death vehicle registration, survivorship rights to *any property owned in*

⁴ Anaya also relied on section 5601, but that statute was renumbered 5042 in 2016.

joint tenancy, and any other similar thing. It does not automatically cancel your spouse's rights as beneficiary of your life insurance policy. *If these are not the results that you want, you must change your will, trust, account agreement, or other similar document to reflect your actual wishes.*" (See Fam. Code, § 2024, subds. (a) & (b), italics added.) This suggests that the dissolution automatically cancels the right of survivorship of a prior spouse and that, to avoid this result, steps must be taken to update the relevant documents to reflect the intent for the joint character of the property to remain. Here, there is no evidence reflecting that Decedent updated the terms of the joint accounts awarded to him to reflect his intent that they remain joint in character. Instead, it is clear based on the divorce decree itself, which labels the accounts as joint accounts, that the accounts were already joint accounts when Decedent and Kolter divorced.

Arguing against this conclusion, Kolter relies on two cases, *Estate of Layton* (1996) 44 Cal.App.4th 1337 (*Layton*) and *Estate of Propst* (1990) 50 Cal.3d 448 (*Propst*), which she contends establish that divorce does not automatically sever a joint tenancy. In *Layton*, the Sixth District Court of Appeal held that a "status-only" divorce decree that did not adjudicate the parties' interests in marital property and expressly reserved the court's jurisdiction to determine same did not automatically sever a joint tenancy. (*Layton, supra*, 44 Cal.App.4th at p. 1344.) In *Propst*, the couple remained married at the time of death and the California Supreme Court held that one joint tenant could unilaterally sever a joint tenancy as to personal property in the absence of a contrary agreement. (*Propst, supra*, 50 Cal.3d at pp. 452-453.) Both cases are clearly distinguishable as, here, the divorce decree did purport to divide the couple's property and the marital dissolution occurred after Decedent had passed away. Moreover, as Anaya points out, both opinions were issued before the Legislature enacted section 5042 in 2001.

B. Kolter Must Establish Decedent's Intent to Preserve the Joint Character of the Property By Clear and Convincing Evidence

Kolter contends that Anaya must provide clear and convincing evidence that Decedent intended something other than a joint account with the right of survivorship. Section 5302, subdivision (a) does state, "Sums remaining on deposit at the death of a party to a joint account belong to the surviving party or parties as against the estate of the decedent *unless there is clear and convincing evidence of a different intent.*" But, as discussed above, section 5042 controls and that section provides, "Subdivision (a) *does not sever* a joint tenancy in . . . the following cases: . . . [t]here is clear and convincing evidence that the decedent intended to preserve the joint tenancy in favor of the former spouse." (Prob. Code, § 5042, subd. (b)(2).) Thus, it is Kolter who must establish by clear and convincing evidence that Decedent intended to preserve the joint tenancy in her favor.

The court finds that Kolter has not established by clear and convincing evidence that Decedent intended to preserve the joint tenancy. The mere fact that the accounts remained titled jointly at the time of Decedent's death cannot be sufficient to establish intent to preserve joint tenancy as a matter of law. If it were, section 5042, subdivision (b) would be a nullity.

Kolter also contends that the divorce decree specifically contemplated that Decedent and Kolter must update their accounts; it did not in and of itself effect severance of the joint character of the accounts. This argument is without merit. As discussed above, the joint character of the accounts was severed by operation of law upon the dissolution of the marriage.

(See §§ 5040, subd. (a); 5042, subd. (a).) Sections 5040 and 5042 do not require the divorce decree to specifically indicate the joint tenancies are dissolved. Instead, they contemplate that a nonprobate transfer to a person who is no longer the spouse of the decedent or a joint tenancy with someone who is no longer the spouse of the decedent will fail because the marriage has been dissolved and thus, the surviving former spouse is no longer considered the surviving spouse within the meaning of section 78. (See §§ 5040, subd. (a); 5042, subd. (a).)

The same reasoning applies to the joint accounts other than the Vanguard Accounts that were awarded to Decedent in the divorce decree. Notably, the parties do not address how the remaining joint accounts listed in Anaya's Petition are titled, but, even assuming they were still titled jointly, the divorce decree severed the joint tenancy. In addition to the Vanguard Accounts, Anaya lists the following joint accounts for which she is seeking a determination that they are estate assets: (1) Joint Wells Fargo Checking Account ending in 9097, (2) Joint Wells Fargo Savings Account ending in 6753, (3) Joint Wells Fargo Savings Account ending in 0901, (4) Joint US Bank Account ending in 9714, (5) Joint US Bank Account ending in 8356. Each of these were awarded to Decedent in the divorce decree. (Divorce Decree, p. 15.) Accordingly, the joint character of these accounts has been severed and the estate is entitled to the contents of those accounts.

C. Non-Joint Assets

As to the Seagate Fidelity 401(k) and the Western Digital Fidelity 401(k), the divorce decree awarded those accounts to Decedent and, therefore, they are property of the estate. (Divorce Decree, p. 14.)

As to the coins and the contents of the safety deposit box, the divorce decree ordered Decedent and Kolter to "cooperate to equitably divide" those assets. (Divorce Decree, p. 9.) The divorce decree did not mention the art described in Anaya's petition at all. As to these assets, the court finds that the briefing provided and the evidence attached to the parties' filings is insufficient to establish ownership over these assets. Kolter is required to provide a full accounting of all tangible personal property identified in the Dissolution Judgment that remains in her possession, including the contents of the jointly-held safety deposit box.

D. Attorney's Fees

In Anaya's petition of December 22, 2025, she requests attorney fees. She cites no statute or other authority for fees and provides no declaration as to the amount of fees claimed. Accordingly, the request for fees is DENIED.

CONCLUSION

Kolter's Petition is DENIED. Anaya's Petition is GRANTED IN PART as to the joint accounts and Decedent's 401(k) accounts. Specifically, the estate is entitled to (1) the Vanguard account ending in 0058, (2) the Vanguard account ending in 3747, (3) the Wells Fargo Checking Account ending in 9097, (4) the Wells Fargo Savings Account ending in 6753, (5) the Wells Fargo Savings Account ending in 0901, (6) the US Bank Account ending in 9714, (7) the US Bank Account ending in 8356, (8) Seagate Fidelity 401(k), and (9) Western Digital Fidelity 401(k). To the extent Kolter is holding these proceeds of these accounts, she is ordered to transfer them to Anaya as administrator of Decedent's estate. Any entities holding

these accounts are directed to distribute the proceeds to Anaya as administrator of Decedent's estate. As to the remaining assets addressed in Anaya's Petition, insufficient evidence has been provided to establish ownership based on the briefs. If not resolved, the matter of personal property shall be set for trial. Kolter is required to provide an accounting of all tangible personal property identified in the Dissolution Judgment that remains in her possession, including the contents of the jointly-held safety deposit box within 30 days of receipt of the final order. Anaya's request for attorney's fees is DENIED.